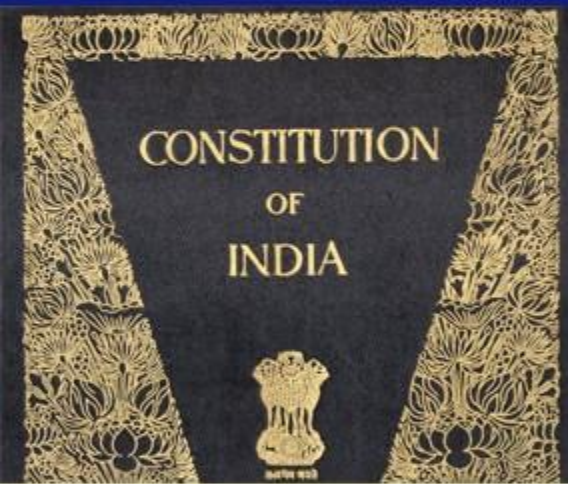


INDIAN POLITY



MODULE - 49

- **FUNDAMENTAL DUTIES**
FEATURES AND CRITICISM

FUNDAMENTAL DUTIES

- 1 Though the rights and duties of the citizens are correlative and inseparable, the **original Constitution contained only the Fundamental Rights and not the Fundamental Duties.**



- 2 In other words, the framers of the Constitution did not feel it necessary to incorporate the Fundamental Duties of the citizens in the Constitution.
- 3 However, they incorporated the **duties of the State** in the Constitution in the form of Directive Principle of State Policy.
- 4 Later in 1976, the Fundamental Duties of citizens were added in the Constitution. In 2002, one more Fundamental Duty was added.

FUNDAMENTAL DUTIES



- 5 The Fundamental Duties in the Indian Constitution are inspired by the Constitution of erstwhile USSR.
- 6 Notably, none of the Constitutions of major democratic countries like USA, Canada, France, Germany, Australia and so on specifically contain a list of duties of citizens.
- 7 Japanese Constitution is, perhaps, the only Democratic Constitution in world which contains a list of duties of citizens.

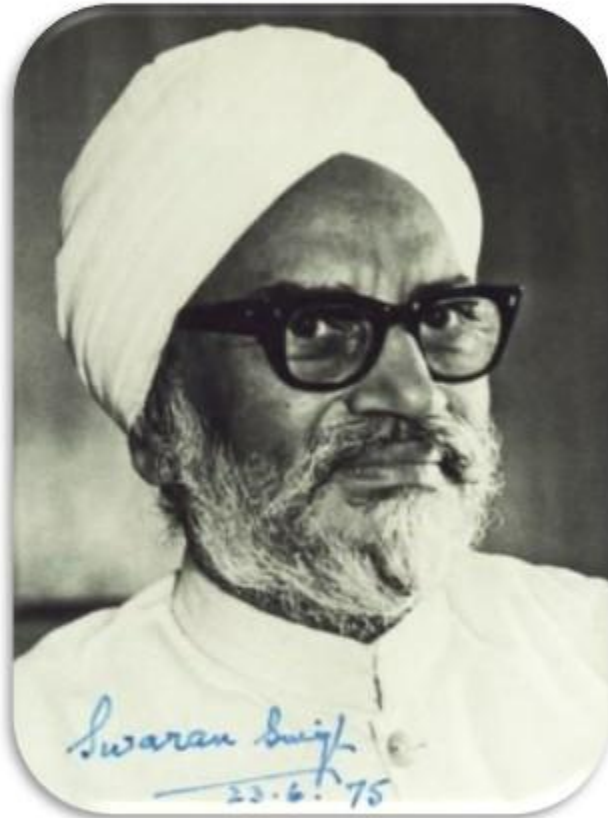
FUNDAMENTAL DUTIES



8 The socialist countries, on the contrary, gave equal importance to the fundamental rights and duties of their citizens.

9 Hence the Constitution of erstwhile USSR declared that the citizen's exercise of their rights and freedoms was inseparable from the performance of their duties and obligations.

SWARAN SINGH COMMITTEE RECOMMENDATIONS



- 1 In 1976, the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about Fundamental Duties.
- 2 The committee recommended the inclusion of a separate chapter on Fundamental Duties in the Constitution.
- 3 It stressed that the citizens should become conscious that **in addition to the enjoyment of rights, they also have certain duties to perform as well.**

SWARAN SIGH COMMITTEE RECOMMENDATIONS



- 4 The Congress Government at Centre accepted these recommendations enacted the **42nd Constitutional Amendment Act in 1976**. This amendment added a new part, namely, **Part IV A** to the Constitution.
- 5 This new part consist of only one Article, that is, **Article 51A** which for the first time specified a code of **ten Fundamental Duties** of the citizens.
- 6 The ruling Congress party declared the non-inclusion of Fundamental Duties in the Constitution as a **historical mistake** and claimed that what the framers of the Constitution failed to do was being done now.

SWARAN SINGH COMMITTEE RECOMMENDATIONS

7 Though the Swaran Singh Committee suggested the incorporation of eight Fundamental Duties in the Constitution, the 42nd Constitutional Amendment Act (1976) included ten Fundamental Duties.

8 Interestingly, **certain recommendations of the Committee were not accepted by the Congress Party** and hence, not incorporated in the Constitution.

- 9** The recommendations include:
- 1) The Parliament may provide for the **imposition of such penalty or punishment** as may be considered appropriate for any non-compliance with or refusal to observe any of the duties.
 - 2) No law imposing such penalty or punishment **shall be called in question in any court** on the ground of infringement of any of Fundamental Rights or on the ground of repugnancy to any other provision of the Constitution.
 - 3) **Duty to pay taxes** should also be a Fundamental Duty of the citizens.

LIST OF FUNDAMENTAL DUTIES

According to Article 51 A, it shall be the duty of every citizen of India:



- 1 To Abide by the Constitution and respect its ideals and institutions, the National flag and the National Anthem.
- 2 To cherish and follow the noble ideals that inspired the national struggle for freedom.
- 3 To uphold and protect the sovereignty, unity and integrity of India.

LIST OF FUNDAMENTAL DUTIES

According to Article 51 A, it shall be the duty of every citizen of India:



- 4 To defend the country and **render national service** when called upon to do so.
- 5 To promote harmony and the **spirit of common brotherhood** amongst all the people of India transcending religious, linguistic and regional or sectional diversities and to **renounce practices derogatory to the dignity of women.**
- 6 To value and preserve the rich heritage of the **country's composite culture.**

LIST OF FUNDAMENTAL DUTIES

According to Article 51 A, it shall be the duty of every citizen of India:



7 To protect and improve the natural environment including forests, lakes, rivers and wildlife and to have compassion for living creatures.

8 To develop scientific temper, humanism and the spirit of inquiry and reform.

9 To safeguard public property and to abjure violence.

LIST OF FUNDAMENTAL DUTIES

According to Article 51 A, it shall be the duty of every citizen of India:



10 To **strive towards excellence** in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavor and achievement and

11 To provide opportunities for education to his child or ward between the age of six and fourteen years. This duty was added by the 86th Constitutional Amendment Act 2002.

FEATURES OF THE FUNDAMENTAL DUTIES

Following points can be noted with regard to the characteristics of the Fundamental Duties:

**1**

Some of them are moral duties while others are civic duties. For instance, cherishing noble ideals of freedom struggle is moral precept and respecting the Constitution, National Flag and National Anthem is a civic duty.

FEATURES OF THE FUNDAMENTAL DUTIES

Following points can be noted with regard to the characteristics of the Fundamental Duties:



- 2** They refer to such values which have been **part of the Indian tradition and mythology, religions and practices**. In other words they essentially contain just a codification of tasks integral to the Indian way of life.
- 3** Unlike some of the Fundamental Rights which extend to all persons whether citizens or foreigners, **the Fundamental Duties are confined to citizens only and do not extend to foreigners**.

FEATURES OF THE FUNDAMENTAL DUTIES

Following points can be noted with regard to the characteristics of the Fundamental Duties:



- 4 Like the Directive Principles, the Fundamental Duties are also non-justiciable. The Constitution does not provide for their direct enforcement by the courts. Moreover, there is no legal sanction against their violation. However, the Parliament is free to enforce them by suitable legislation.

CRITICISM OF FUNDAMENTAL DUTIES

The Fundamental Duties mentioned in Part IVA of the Constitution have been criticized on the following grounds:



- 1 The list of duties is not exhaustive as it does not cover other important duties like casting vote, paying taxes, family planning and so on. In fact, **duty to pay taxes** was recommended by the Swaran Singh Committee.
- 2 Some of the duties are vague, ambiguous and difficult to be understood by the common man. For example, different interpretations can be given to the phrases like **noble ideals**, **composite culture**, **scientific temper**, and so on.

CRITICISM OF FUNDAMENTAL DUTIES

3 They have been described by the critics as a code of **moral precepts** due to their **non-justiciable** character. Interestingly, the Swaran Singh Committee had suggested for **penalty or punishment** for the non-performance of Fundamental Duties.



4 Their inclusion in the Constitution was described by the critics as **superfluous**. This is because the duties included in the Constitution as fundamental would be performed by the people even though they were not incorporated in the Constitution.

5 The critics said that the inclusion of Fundamental Duties as an appendage to Part IV of the Constitution has reduced their value and significance. **They should have been added after Part III** so as to keep them on par with Fundamental Rights.

SIGNIFICANCE OF FUNDAMENTAL DUTIES

In spite of criticisms and opposition, the Fundamental Duties are considered significant from the following viewpoints:

- a** They serve as a reminder to the citizens that while enjoying their rights, they should also be **conscious of duties they owe to their country**, their society and to their fellow citizens.



- b** They serve as a **warning against the antinational and antisocial activities** like burning the national flag, destroying public property and so on.
- c** They serve as a source of inspiration for the citizens and **promote a sense of discipline and commitment among them**. They create a feeling that the citizens are not mere spectators but **active participants in the realization of national goals**.

SIGNIFICANCE OF FUNDAMENTAL DUTIES

In spite of criticisms and opposition, the Fundamental Duties are considered significant from the following viewpoints:



d They help the courts in examining and determining the Constitutional validity of a law.

e They are **enforceable by law**.
Hence, the Parliament can provide for the imposition of appropriate penalty or punishment for failure to fulfil any of them.

SIGNIFICANCE OF FUNDAMENTAL DUTIES



H.R GOKHALE

1

H.R.Gokhale, the then Law Minister, gave the following reason for incorporating the fundamental duties in the Constitution after twenty six years of its inauguration:

“In post-independent India, particularly on the eve of emergency in June 1975, a section of the people showed no anxiety to fulfil their **fundamental obligations of respecting the established legal order.....**the provisions of chapter on fundamental duties would have a sobering effect on these restless spirits who have had a host of **antinational subversive and unconstitutional agitations in the past**”.

SIGNIFICANCE OF FUNDAMENTAL DUTIES



- 2 Indira Gandhi, the then Prime Minister, justified the inclusion of Fundamental Duties in the Constitution and argued that their inclusion would help to strengthen democracy.
- 3 She said “the moral value of fundamental duties would be not to smother rights but to establish a democratic balance by making the people conscious of their duties equally as they are conscious of their rights”.
- 4 The Opposition in the Parliament strongly opposed the inclusion of Fundamental Duties in the Constitution by the Congress Government.

SIGNIFICANCE OF FUNDAMENTAL DUTIES

- 5 However, the new Janata Government headed by Moraji Desai in the post-emergency period did not annul the Fundamental Duties.



- 6 Notably, the new Government sought to undo many changes introduced in the Constitution by the 42nd Amendment Act (1976) through the 43rd Amendment Act (1977) and the 44th Amendment Act (1978),

- 7 This shows that **there was an eventual consensus** on the necessity and desirability of including the Fundamental Duties in the Constitution.

- 8 This is more clear with the addition of one more Fundamental Duty in 2002 by the 86th Amendment Act.

QUESTION

Consider the following statements regarding the composite culture

- 1) The term “Composite Culture” has been mentioned in the Direct Principles of State Policy.
- 2) Composite Culture means the synthesis of Aryan Culture and Dravidian Culture.
- 3) The tolerance of the Indian culture, which is based on Sanskrit language, to imbibe the alien cultures has resulted in the formation of composite culture.

Choose the correct options from the ones given below

- | | |
|-----------|---------------------|
| a) 1 only | b) 1 & 2 only |
| c) 3 only | d) All of the above |

ANSWER : C

HINDUISM
JAINISM
BUDDHISM
SIKHISM
ISLAM
CHRISTIANITY

- The Composite Culture has been mentioned in Article 51 A(f), which is the fundamental duty and not in the directive principles of State Policy
- To quote the Supreme Court: “though the people of this country differ in a number of ways they were all proud to regard themselves as participants of common heritage, which is the heritage of Sanskrit”.
- The reason given by the Supreme Court was that the original population of India was Hindu and thereafter this country was invaded by the Islamic rulers and later it was under the British Rule.
- Because of its tolerance, the Hindu Culture imbibed these alien cultures and thus grew the composite culture in India.

QUESTION

Which of the following are the Fundamental Duties present in Article 51 A?

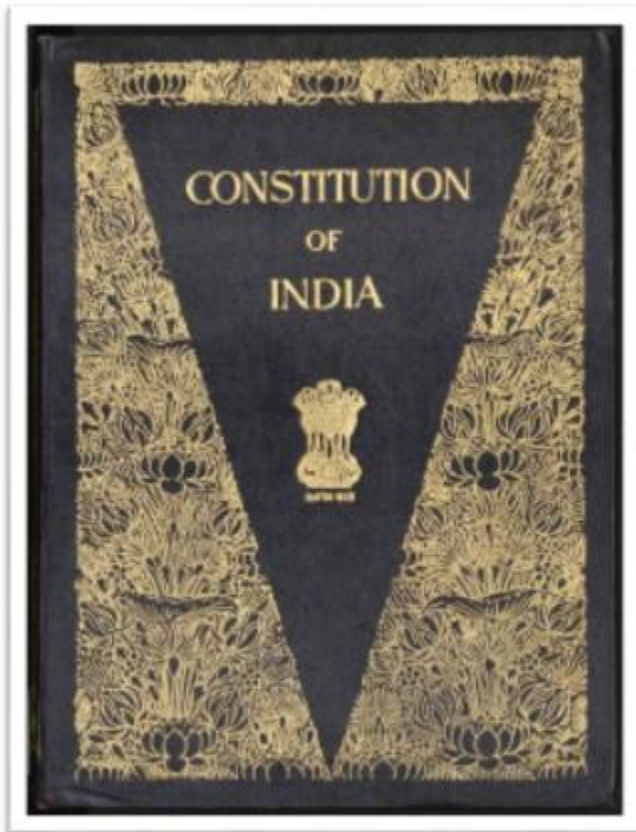
- 1) To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.
- 2) To promote harmony and the spirit of common brotherhood amongst all the people of India.
- 3) To protect and improve the environment and to safeguard forest and wild life.
- 4) To protect monuments, places and objects of artistic or historic interest, which are declared to be of national importance

Choose the correct option from given below

- | | |
|-----------------|-----------------|
| a) 1 & 2 only | b) 1,2 & 3 only |
| c) 2,3 & 4 only | d) 1,2 & 4 only |

ANSWER : A

EXPLANATION



- The first two statements are, in fact, present in the Article 51 A of the Indian Constitution.
- However, the Statements 3 & 4 are the **Directive Principles of the State Policy** present in Article 48 A and 49 respectively and they are not fundamental duties.
- Article 48A= “To protect and improve the environment and to safeguard forest and wildlife”.
- Article 51A= “To protect and improve natural environment including forests, lake, wildlife and to have passion for living creatures”
- Both articles may look similar but have a lot of differences between them.

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suggestions@learningspace.in

To Contact us:

info@learningspace.in

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K. Srikanth

D. Sunil Kumar

L. V. Krishna

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